

23VECV04881 23VECV04881

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Tentative Ruling

Doe A.D. v. Summer View, Case no. 23VECV04881

Hearing date July 1, 2026

Plaintiff A.D.'s Motion to Compel

Further

Defendant

Calderon's Motion for Leave to File a Cross-Complaint

Plaintiff

Jane Doe A.D. sues defendants Summer View, Anza Management, Calderon and 9510 Van Nuys Boulevard, LLC for sexual assault, negligence and negligent supervision. Plaintiff tenant at defendants' property alleges she was assaulted by Calderon, a maintenance worker employed by Anza. Plaintiff moves to compel further responses to special interrogatories, set two, from Anza; Anza opposes. Calderon moves for leave to file a cross-complaint against Anza; Anza opposes.

Plaintiff A.D.'s Motion to Compel Further Responses to
Special Interrogatories

To

obtain an order compelling further responses, a party must show "good cause" justifying the discovery. Code Civ. Proc. §2031.310(b)(1); see also *Kirkland v. Super. Ct.* (2002) 95 Cal. 4th 92, 98. A party shows "good cause" by showing relevance to the subject matter. *Weil & Brown, Cal. Practice*

Plaintiff

moves to compel further responses to special interrogatories, set two, nos. 11-14, asserting Anza served only objections to the interrogatories, which seek last known contact information of three former Anza employees and “Community Managers” who worked with Calderon. Decl. Suh, exhs. 1-2. Plaintiff argues the deposition of Anza’s PMK, Gaxiola, establishes the relevance of the former employees’ testimony. Id. at exh. 5, pp. 164:22-165:11; 166:10-15; 175:6-12. Plaintiff further argues Calderon’s testimony confirms these employees worked with or managed him. Id. at exh. 6, pp. 71:23–73:4.

Anza

argues plaintiff failed to show a particularized factual need for the discovery sought such that production of third-party contact information is warranted. Anza argues plaintiff cannot identify a specific complaint received, or made, by the former employees regarding Calderon. Anza argues plaintiff relies on generalized assertions that the former employees “would have knowledge,” “would have supervised” or “may have explained” employment duties to Calderon. See Mtn., pp. 2, 3, 5, 7. Anza asserts that, absent a showing of specific need, plaintiff cannot compel production of these former employees’ contact information. See *County of Los Angeles v. Los Angeles County Employee Relations Com.* (2013) 56 Cal.4th 905, 927.

Plaintiff argues the former employees’ working and supervisory relationships with Calderon establish relevance. “Central to the discovery process is the identification of potential witnesses. ‘The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery.’” *People v. Dixon* (2007) 148 Cal.App.4th 414, 443. Plaintiff is entitled to discover the information sought.

Anza’s argument that the court should adopt an opt-out approach per *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554 is unavailing. Plaintiff has the right to obtain “the identity and location of persons having knowledge of any discoverable matter,” per *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1249. *Puerto* held the trial court abused its discretion in adopting an opt-out procedure, finding “the opt-in notice unduly hampers petitioners in conducting discovery to which they are entitled by erecting obstacles that not only exceed the protections necessary to adequately guard the privacy rights of the

employees involved but also exceed the discovery protections given by law to far more sensitive personal information.” Id. at 1245.

Anza failed to show how obtaining the contact information of former employees constitutes a serious intrusion, such as those in *Hill v. National Collegiate Athletic Ass’n*. (1994) 7 Cal.4th 1, 37l. The information sought is not medical, financial or personal in nature. GRANTED; Anza to serve full, code-compliant responses to special interrogatories, set two, nos. 11-14 within 30 days.

Defendant Calderon's Motion for Leave to File a Cross-Complaint

Permission to file a cross-complaint is discretionary. *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701. A defendant may file a cross-complaint against a third party if the cause of action asserted arises out of the same transaction, occurrence or series of transactions or occurrences as set forth in the complaint. Code Civ. Proc. §428.10. Per section 428.50(c), a cross-complaint may be filed at any time “in the interests of justice.”

Calderon argues the sexual assault allegations are false, and the contact between him and plaintiff was consensual. Calderon argues Anza failed to indemnify him from plaintiff’s lawsuit despite the allegedly consensual sexual contact occurring “when Calderon was performing his employment duties.” Mtn., 3:25-26; Decl. Dotson, paras. 7-10.

Calderon argues the proposed cross-complaint is compulsory under Code Civ. Proc. §426.30(a). A compulsory cross-complaint under section 426.30 concerns a “related cause of action” that a defendant has “against the plaintiff” at the time of answering the complaint. Code Civ. Proc. §426.30(a). Calderon is not seeking to assert any claims against plaintiff. See Decl. Dotson, exh. A. Rather, he seeks to sue co-defendants property management company Anza and property owner 9510 Van Nuys Blvd. for statutory indemnity. This permissive cross-complaint is governed by Code Civ. Proc. §§428.10 and 428.50. Calderon does not face forfeiture of his claim if leave to cross-complain is denied.

Anza

and 9510 Van Nuys Blvd. argue the proposed cross-complaint is legally defective because an indemnity claim under Labor Code §2802 cannot arise from sexual activity, consensual or otherwise. Anza and 9510 Van Nuys Blvd. argue Calderon's discovery responses indicate he was employed by Anza, not by 9510 Van Nuys Blvd., so allowing him to allege employment by 9510 Van Nuys Blvd. for purposes of an indemnity claim contradicts verified discovery responses.

Anza

and 9510 Van Nuys Blvd. also argue defective notice. The motion caption, as well as its substance, refers only to indemnity claims against Anza. Notice of Mtn., p. 1; Mtn., p. 3. However, the concluding paragraph requests leave to file a cross-complaint against 9510 Van Nuys Blvd. as well as Anza. See Mtn., p. 12. The proposed cross-complaint seeks indemnity against all defendants, including 9510 Van Nuys Blvd. See Decl. Dotson, exh. A, p. 6. The motion is defective as to 9510 Van Nuys Blvd. for insufficient notice. The cross-complaint must either strike 9510 Van Nuys Blvd. as a cross-defendant or this motion must be re-filed with proper notice to all proposed cross-defendants.

The

merits of an indemnity claim arising from alleged sexual conduct are not a basis to deny leave to file a cross-complaint. Arguments on the merits of a proposed pleading are reserved for demurrer, summary judgment or judgment on the pleadings. Leave to cross-complain is liberally granted, even where the cross-complaint is not compulsory. While the motion is well-taken as to Anza, the defects as to 9510 Van Nuys Blvd. remain. The court will enquire as to whether Calderon wishes to strike 9510 Van Nuys Blvd. from the proposed cross-complaint or to refile this motion.